DIVISION BENCH ITEM NO.122

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.19/ALD/2023 IN CA (CAA) No.07/ALD/2023
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 9thFebruary, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**AVENUE SALES PVT. LTD. WITH RAYANA PAPER BOARD INDUSTRIES LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. N. Gurumurthy, FCA with Ms. Aisha Amin, Adv. *: For the Petitioner*

Sh. Krishna Dev Vyas, Adv. *: For the ROC*

Sh. Ajeet Kumar Singh, AOL/ALD *: For the OL/RD*

Sh. Neeraj Kumar Singh, Adv. *: For the IT Deptt.*

ORDER

1. The reports on behalf of the Official Liquidator as well as the RD have already been filed and advance copy is also supplied to the Ld. Counsel representing the Petitioner.

2. There is no report filed on behalf of the Income Tax Department.

3. However, the Ld. Counsel representing the petitioner states that a supplementary affidavit has been filed vide Diary No.3033 dated 1st December, 2023, whereby the copy of reply/ affidavit on behalf of the Income Tax Department is stated to have been filed.

-Sd- ***-Sd-***

4. Ld. Counsel representing the Income Tax Department, however, states that the CP (CAA) No.09/ALD/2023 (Second Motion Petition) as well as the CA (CAA) No.18/ALD/2023 (First Motion Application) as mentioned at page no.13 of the affidavit of the Income Tax Department are not the one which are shown in the cause list in the present matter.

5. In view of this, he states that the copy of the petition may be supplied to him.

6. The Ld. Counsel representing the petitioner undertakes to supply the copy of the petition to the Ld. Counsel representing the Income Tax Department within a period of three days.

7. The report, if any, be filed within a period of two weeks positively, with advance copy to be supplied to the Ld. Counsel representing the petitioner.

8. The matter is adjourned for further hearing on 14th March, 2024.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

9th February, 2024

Avaneesh Kumar Singh
(Stenographer)